

24NNCV06098 24NNCV06098

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CT%2C07%2F10%2F2026

Source SHA-256: 2bf21c715e5a916d338245e0d3ea203f4054c222b3a089484fa5466762dc87bb

Case Number: 24NNCV06098 Hearing Date: July 10, 2026 Dept: T

Nathaniel

Eberwein, a minor, by and through his guardian ad litem, Mark Eberwein, et al. vs.

Pasadena Hospital Association, Ltd, et al.

Motion

for Summary Judgment

Moving Party: Defendant Pasadena Hospital Association, Ltd.

dba Huntington Hospital

Responding Party: Plaintiffs

Nathaniel Eberwein, a minor, by and through his guardian ad litem, Mark

Eberwein, and Christina Furstenberg

Tentative Ruling: Deny

BACKGROUND

On November 25, 2024, Plaintiffs Nathaniel

Eberwein, a minor, by and through his guardian ad litem, Mark Eberwein,

("Eberwein") and Christina Furstenberg (collectively "Plaintiffs") filed a complaint

against Defendant Pasadena Hospital Association, Ltd. dba Huntington Hospital ("Defendant")

and other named and unnamed defendants, alleging causes of action for medical

negligence and negligent infliction of emotional distress ("NIED").

Defendant now moves for summary

judgment. Plaintiffs oppose, and

Defendant replies.

MOVING

PARTY POSITION

Defendant

argues that it is entitled to summary judgment as no triable issues of material fact exist regarding the medical negligence or NIED claims alleges against it, as the undisputed evidence establishes that none of Defendant's acts or omissions substantially caused or contributed to Plaintiffs' alleged injuries. In making this argument, Defendant relies on the declaration of its expert, Edward J. Yun, M.D.

OPPOSITION

Plaintiffs

contend that the declaration of their expert, Nima Nassiri, M.D., demonstrates the existence of a triable issue of material fact as to whether Defendant's acts or omissions substantially caused or contributed to Plaintiffs' alleged injuries. A factual dispute exists as to the onset of Eberwein's symptoms on November 25, 2022, before his arrival at Defendant's hospital and presentation to its emergency department with complaints of groin pain. There is also no reasoned basis for Dr. Yun's opinion that Eberwein's right testicle was already non-viable when he arrived at the hospital.

REPLY

Defendant responds that Plaintiffs'

opposition mischaracterizes the basis of Dr. Yun's opinion, as the reported timing of the onset of these symptoms, as Dr. Yun considered the operative findings, intraoperative appearance of the testicle, and other objective medical negligence. The medical records regarding the onset of Eberwein's symptoms can be reasonably reconciled and do not give rise to a factual dispute. Dr. Nassiri's conclusory and speculative opinions also fail to raise triable issues of material fact as to causation.

ANALYSIS

I.

Legal

Standard

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [cleaned up].) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Id. at p. 840 [cleaned up]; see, also, Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

II. Evidentiary Objections

The Court declines to rule on the parties’ evidentiary objections as they have no effect on the ruling herein.

III. Discussion

Defendant moves for summary judgment based on the nonexistence of triable issues of material fact as to causation.

“[I]n

any medical malpractice action, the plaintiff must establish: ‘(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional’s negligence.’ [Citation.]” (Hanson v. Grode (1999) 76 Cal.App.4th 601, 606, as modified (Nov. 29, 1999) [quoting Gami v. Mullikin Medical Center (1993) 18 Cal.App.4th 870, 877].)

“Where, as here, the material issues framed by the complaint are whether the conduct of a medical professional fell below the standard of care and proximately caused the plaintiff’s injury, expert testimony is required to establish the reasonable degree of skill, knowledge, and care ordinarily possessed and exercised by members of the medical profession under similar circumstances [citation], as well as whether the defendant’s conduct proximately caused the plaintiff’s injuries within a reasonable medical probability [citation].” (Zaragoza v. Adam (2025) 109 Cal.App.5th 113, 118–119, review denied (June 11, 2025).) “[T]he opinion of any expert is only as good as the facts and reasons on which it is based’ [citation], and the trial court ‘properly act[s] as a gatekeeper to exclude speculative expert testimony’ [citation].” (Id. at p. 119, alterations in original.) “A moving defendant’s ‘burden to show the absence of any genuine issue of material fact cannot be satisfied by an expert declaration consisting of ultimate facts and conclusions that are unsupported by factual detail and reasoned explanation, even if it is admitted and unopposed.’”

(Id. at p. 119 [quoting Doe v. Good Samaritan Hospital (2018) 23 Cal.App.5th 653, 657].)

Based

on the submitted evidence, the Court finds that Defendant failed to carry its initial burden, as triable issues of material fact exist as to the causation element of Plaintiffs’ claims, including the disputed timing of when Eberwein’s

symptoms first began on November 25, 2022.

In

reviewing the expert opinion offered by Dr. Yun, the Court initially notes that Dr. Yun identifies the following fact to be relevant: "On November 25, 2022 at 19:53, Nathaniel Eberwein presented to the Emergency Room with complaints of groin pain. He first noticed discomfort at approximately 12:00, that afternoon. The pain progressively increased throughout the day and became severe by approximately 18:00." (Goethals Decl., Exh. 1 ("Yun Decl.") ¶ 7a.) This timeline regarding the onset and progression of Eberwein's symptoms serves as a predicate fact for the opinions that Dr. Yun later offers regarding the viability of Eberwein's right testicle by the time he presented to the hospital. Specifically, Dr. Yun opines the following:

Based on my education, training, experience, and review of the medical records in this matter, it is my expert opinion, to a reasonable degree of medical probability, that any alleged delay in examination or in employing diagnostic procedures to promptly assess and rule out testicular torsion was not a substantial factor in causing Nathaniel Eberwein to suffer irreversible damage to his right testicle or to require a right orchiectomy. By the time of his presentation to the emergency department, approximately seven to eight hours had elapsed from the onset of symptoms. Given this time interval between the onset of symptoms and presentation to the emergency department, to a reasonable degree of medical probability, Nathaniel Eberwein's right testicle was already nonviable at the time he presented to the hospital. In other words, earlier intervention upon presentation would not have altered the ultimate outcome. This opinion is not only supported by the duration of time that had passed prior to his presentation to the hospital, but also by the intraoperative findings of his treating urologist, the intraoperative photographs, and the description of the testicle in the pathology report.

(Yun

Decl. ¶ 8, emphasis added.) Dr. Yun further opines as follows:

When a testicle twists upon itself, blood flow to and from the testicle stops, and as time progresses, the likelihood of saving the testicle decreases. In this case, Nathaniel Eberwein reported that he first experienced right testicular discomfort at approximately

12:00 p.m. on November 25, 2022. His pain progressively increased throughout the day and became severe at approximately 6:00 p.m. He presented to the emergency department at 7:53 p.m. Therefore, by the time he presented at 7:53 p.m., seven to eight hours had passed since the testicle had torsed. This duration exceeds the four-to-six-hour timeframe within which salvage could have been reasonably expected. Also, Dr. Yamada's intraoperative finding that the testicle had already "infarcted" despite manual detorsion, the intraoperative photographs showing a gelatinous appearance to the testicle and cord, and the pathologist's determination that the testicle was "purple-black" and that the epididymis and cord were "coagulum" are all consistent with a testicle that had been nonviable for a long time, and in this case, prior to arrival to the hospital.

(Yun

Decl. ¶ 9, emphasis added.) Based on Dr.

Yun's opinions regarding the time dependent nature of the testicle's viability and whether salvage could have been reasonably expected, the timing of the onset of Eberwein's symptoms is material to the issue of whether Defendant's acts or omissions ultimate removal of Eberwein's testicle. However, the underlying case-specific fact regarding this timing has not been established by admissible evidence.

"Case-specific facts are those relating to the particular events and participants alleged to have been involved in the case being tried. Generally, parties try to establish the facts on which their theory of the case depends by calling witnesses with personal knowledge of those case-specific facts."

(People v. Sanchez (2016) 63 Cal.4th 665, 676.) Accordingly, though an expert is allowed to opine on what case-specific facts may mean, "[t]he expert is generally not permitted, however, to supply case-specific facts about which he has no personal knowledge." (Ibid.; see, also, Garibay v. Hemmat (2008) 161 Cal.App.4th 735, 743 ["Although experts may properly rely on hearsay in forming their opinions, they may not relate the out-of-court statements of another as independent proof of the fact."].)

Here,

Defendant submits no admissible evidence as to when Eberwein's symptoms of this condition first began on November 25, 2022.

In its separate statement, Defendant sets forth the following material fact based on Eberwein's medical records: "On November 25, 2022 at 19:53, Nathaniel Eberwein presented to the Emergency Room with complaints of groin pain. He first noticed discomfort at approximately 12:00, that afternoon. The pain progressively increased throughout the day and became severe by approximately 18:00." (Defendant's Separate Statement of Undisputed Material Facts ¶ 1.)

Though the submitted medical records are properly authenticated and thereby subject to the business records exception to the hearsay rule, the reported timing of the onset of Eberwein's symptoms contained within these records does not appear to fall under an applicable exception to the hearsay rule. In particular, in the operative report provided by Alan H. Yamada, M.D., at 8:30 am on November 26, 2022, Dr. Yamada included the following indications: "Nathaniel is a 15-year-old who apparently was playing catch with his father. He 1st noticed right testicular discomfort around 12 noon. The pain progressively increased during the day. By 6 o'clock, it was severe. By 8 o'clock, he was in the emergency room." (Goethals Decl., Exh. C.) Although Dr. Yun may rely on this statement in forming his expert opinion, this statement cannot serve as proof of the fact that Eberwein's symptoms began at noon that day. (People v. Williams (1960) 187 Cal.App.2d 355, 365 ["It should be remembered that a history given by a patient to his physician is admissible only as a basis for the expert opinion of the latter and never as substantive proof of the facts so stated to him by the patient."]; Ibid. ["The same rule necessarily is applicable to such statements found in a hospital record when offered as affirmative proof of their truth."].) Likewise, the reported onset of pain in the triage and ED Provider notes are not admissible as proof of when his symptoms began. (Goethals Decl., Exh. B ["Groin Pain (PT C/O R GROIN PAIN X 4 HOURS NO NAUSEA NO FEVER NO URINARY PROBLEMS. PAIN STARTED AFTER A CAR RIDE.)"]; id., Exh. E ["Pain started 4 hours prior to presentation, but became increasingly severe over the last 3 hours."].) As Defendant failed to provide admissible evidence establishing this material fact, and as Defendant may not rely on the declaration of his expert as independent proof of when these symptoms began, the Court finds that Defendant failed to carry its initial burden in demonstrating the absence of a triable issue.

Even if these reported statements were admissible as proof of the timing of

Eberwein's onset of symptoms, the material fact of this timing would still remain at issue. Although Defendant argues that the reported statements in the triage and ED Provider notes are reconcilable with the reported statement provided in the operative report, in strictly construing this evidence, the Court finds that reasonable minds could differ as to the material timing of this onset of symptoms. (Binder, 75 Cal.App.4th at p. 838 ["[T]he rule continues that the moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed."].)

Therefore, as Defendant failed to make a prima facie showing of the nonexistence of triable issues of material fact on the causation element of Plaintiffs' medical negligence and NIED claims, the motion for summary judgment is denied.

RULING

Defendant

Pasadena

Hospital Association, Ltd. d.b.a. Huntington Hospital's Motion for Summary Judgment is DENIED.